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Service Direction for North America on Tampered Emissions Control Devices	

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1. Introduction

1.1 This Service Bulletin is intended to emphasize the Cummins Inc. position on tampering of the emissions control devices on our products.

1.2 Additionally, it describes the actions Cummins® distributors and dealers must take if they discover evidence of tampering of emissions control devices.

2. Definitions

2.1 ARB: California Environmental Protection Agency (Air Resource Board) ...Emission regulatory agency for California. See link below.
Note : <http://www.arb.ca.gov/homepage.htm> (<http://www.arb.ca.gov/homepage.htm>)

2.2 CFR: Code of Federal Regulations ... EPA's documentation at link below.
Note : www.ecfr.gov (www.ecfr.gov)

2.3 Defeated or Tampered Device: Any device that bypasses, defeats or renders inoperative a required element of the engines' emissions control device. Ex: EGR valve sensor disconnected, DPF removed, SCR wiring or plumbing removed, or other conditions that prevent the emissions control device from operating in its certified configuration.

2.4 ECCC: Environment and Climate Change Canada

2.5 Emissions Control Device:
 Components or parts that have been installed for the purpose of controlling emissions, such as exhaust gas recirculation (EGR) components, DIESEL PARTICULATE FILTER (DPF) components, selective catalytic reduction (SCR) components, engine control module (ECM), calibration, and diesel oxidation catalysts (DOC).

2.6 EPA: United States Environmental Protection Agency

2.7 LCL: Local Compliance Leader / Emissions Compliance Leader (contact list in PPC # 4556) – point person for Emission Compliance at distributors within CSSNA

2.8 PPC – Primary Parts Communication – Found in QuickServe® Online (QSOL). See weblink below.
Note : <https://quickserve.cummins.com/info/index.html> (<https://quickserve.cummins.com/info/index.html>)

Then navigate to Enter Site, My Applications, and Primary Parts Communication.

3. Cummins Inc. Policy on Tampered Emissions Control Devices (Excerpt)

Note : Distributor Only: The complete Cummins Inc. Policy CORP-24-0830-012 is located on the TQS Online portal.

Contact the Distributor Local Compliance Leader (contact list in PPC # 4556) for more detail.

3.1 Cummins Inc. prohibits tampering of our products in any capacity at any time during the product's life and is inconsistent with our warranty policies.

3.2 Tampering with emissions control devices violates the Cummins Inc. Code of Business Conduct and is inconsistent with our warranty policies.

3.3. It is illegal under the Clean Air Act and the California Vehicle Code for Cummins® Distributors and authorized service locations to service a tampered emissions control device without returning it to its certified configuration.

3.4. If a Cummins® Distributor or authorized service provider discovers through the normal course of maintenance or repair that an emissions control device has been defeated, the customer **must** be notified and advised to correct the condition.

4. Questions & Answers (Q+A)

Q4.1: What is tampering?

A4.1: A defeated, or tampered device includes (but is **not** limited to) an EGR valve sensor disconnected, DPF removed, SCR wiring or plumbing removed, non-Cummins/modified software, or other conditions that prevent the emissions control device from operating in its certified configuration. Examples of this include non-approved performance kits and ECM calibration changes.

Q4.2: How should the customer be notified if tampering is found (through course of service)?

A4.2: The Service Manager should communicate with the customer through normal business practices and should be general in nature as **not** to implicate or accuse the owner of causing the tampering.

Suggested verbiage, "Your emissions control system may **not** be operating in its certified configuration because [insert description of issue]." Cummins Inc. recommends documenting findings in a Work Order.

Q4.3: Can I work on the engine when I find tampering?

A4.3: When a technician discovers evidence of tampering while servicing a product, the technician should stop the repair and notify the Service Manager. If tampering is found while servicing the emissions control device that is **not** operating in its certified configuration, stop the repair and notify the customer that the system **must** be brought back to a certified configuration to proceed with repair. When tampering is found while servicing emissions control device, continue the repair and notify the customer of the suspected tampering.

Q4.4: What if the engine that has been tampered with is out of warranty?

A4.4: The Policy on Tampered Emissions Control Devices (CORP-24-0830-012) applies to all Cummins Inc. engines, regardless of the warranty status.

Q4.5: What are the consequences for policy violation?

A4.5: The Clean Air Act and the California Vehicle Code prohibit servicing a tampered emissions control device without returning it to its certified configuration. Individuals who violate emissions regulations or this policy may be subject to the following consequences which may include but are **not** limited to: Disciplinary action up to and including termination, serious civil and criminal penalties, fines, lengthy prison terms. Authorized service locations that violate emissions regulations may be subject to the following consequences which may include but are **not** limited to: termination of Cummins Inc. contract, serious civil and criminal penalties, fines, and lengthy prison terms.

Q4.6: What is EPA's position on having aftermarket parts used in the engine system, Cummins or non-Cummins?

A4.6: Per EPA's Enforcement Policy Statement on Tampering and Aftermarket Devices, dated November 23, 2020, the EPA typically does **not** take enforcement action for conduct that might be a violation of section 203(a)(3) of the Clean Air Act if the person engaging in the conduct has a documented "reasonable basis" to conclude that the conduct (or, where the conduct in question is the manufacturing or sale of a part or component, the installation and use of that part or component) does **not** and will **not** adversely affect emissions. This statement does **not** apply, however, to conduct affecting an OBD system, which may be subject to enforcement regardless of effect on emissions. For parts that are **not** genuine Cummins replacement parts, a reasonable basis exists if you have records regarding emission test results from tests conducted in accordance with EPA's federal test procedure ("FTP") showing that similar engines/vehicles meet the standards for the engine/vehicles' useful lives. In California, aftermarket parts that are **not** genuine Cummins replacement parts should have an ARB-issued Executive Order ("EO") that covers the part. This EO also generally will fulfill the requirement for having records regarding test data supporting a reasonable basis.

Q4.7: Where do I find information about unacceptable changes to an engine?

A4.7: Cummins Inc. warranty policy WAM 513-007. WAM 513-007 states that if a product modification is performed that is **not** to an acceptable Cummins Inc. configuration or does **not** conform to applicable emissions standards, the following applies:

- The repair location should advise the customer that their unit has been tampered with and recommend it be put back to an acceptable configuration.
- Cummins Inc. will **not** repair or replace any component that has been modified.
- Malfunctions caused by incorrect or unacceptable product modifications are **not** covered by Cummins Inc.

5. Scenarios

5.1. If a customer asks for an oil change and a new water pump, but service notices the DPF has been defeated, can the service repair on the non-emission regulated parts continue?

Yes, service personnel may perform the service requested on the portion of the engine that does **not** include the tampered emissions control device so long as the customer is notified of the tampering and the tampered emissions control devices are only assembled / installed back to the engine in a certified configuration. However, service personnel must **not** reinstall the devices back to the engine, and the customer must tow the vehicle away.

5.2 When an emission-regulated part is found out of certified configuration, how do you speak to the customer?

Be general in nature so as to **not** accuse the owner.

5.3 If an EGR valve is welded shut, and the customer wants an engine overhaul, what needs to happen?

As the EGR system is an emission-regulated system, the engine may **not** be overhauled unless the engine system is returned to its certified configuration. The service personnel shall notify the customer of this requirement. If the customer agrees with return to certified configuration, the customer will be charged accordingly or if **not**, the customer will be asked to tow the vehicle away with no work completed.

5.4. If a DPF delete kit is mentioned at the service check-in, what should the service personnel do?

Service desk should inform the technician to look for possible emission-related tampering prior to performing requested service action and respond to customer as needed depending on findings.

5.5. What happens if Cummins Inc. tells a customer of tampering being found on their vehicle and the customer says they will go to another dealer instead?

Cummins Inc. must adhere to the Cummins Code of Conduct and the Clean Air Act.

5.6 A customer brought in a piece of farm equipment with an off-highway engine where the aftertreatment had been removed. He was confused thinking only on-highway vehicles fell under the Clean Air Act. Is this true?

Federal law prohibits tampering with a certified configuration no matter the product market or application.

5.7. If a vehicle or machine requiring service has an engine that is misapplied (such as a non-road engine in an on-highway application or a 2001 MY engine in a 2012 MY truck), can we provide service?

The customer should be notified that their engine appears to be misapplied. Service should **not** proceed.

5.8. How can I tell if an engine is misapplied?

Installing or using the engine for any purpose other than for its intended application provided on the engine's dataplate may be a violation of U.S. Federal law subject to civil penalty. For ReCon® engines an RX configuration is to be of the same or newer model year as the model year of the engine, or engine with aftertreatment system, the engine is replacing, or if this is unknown, the model year of the equipment in which the engine is to be used.

5.9. If a customer brings a California ARB-issued EO showing that the modification on the engine is approved, what should the service personnel do?

Contact the Local Compliance Leader or distributor contact (for dealers) to verify before service can proceed (see contact list in Section 6).

5.10. How does changing an engine rating EPA On Highway MY2021+ for without OEM approval being viewed?

Engine fuel map data under GHG Phase 2 regulations will be an input to most (but **not** all) vehicle GHG certification. Changing engine rating changes the fuel map, which in turn might also affect vehicle GHG compliance. Changes to the certified fuel map that lead a vehicle to no longer comply with vehicle GHG standards could be perceived to violate the tampering prohibition of 40 CFR 1068.101(b)(1) and may constitute tampering. In this case, both the OEM and Cummins Inc. might face enforcement risk. (Reference PPC 5953 or TSB200206 for more information.)

6. Emissions Compliance Contacts

For additional questions about the Tampered Emissions Control Device Policy, contact:

- The Distributor Local Compliance Leader (LCL) – see PPC # 4556 for an LCL contact list
- Emissions Compliance Leader for DBU or PC&RA at pc.ra.inbox@cummins.com
- Dealers should contact their Cummins® distributor contact

7.1 Emissions Compliance Related Documents

- Policy on Tampered Emissions Control Devices CORP-20-0830-012
- Global Engine and Engine System Modification Policy CCP-0012
- Engine Conversion Policy CORP-20-02-01-00

7.2 Warranty Administration Manual (WAM)

Reference the following WAM sections for guidance as to warranty related to engine acceptable and unacceptable modification (i.e. tampering):

- WAM 111-503-057 and WAM 111-503-072 includes a list of emissions control system components.
- WAM 111-513-007 Engine Modification
- WAM 111-504-003 New and ReCon Parts Warranty Administrative Procedures

7.3 Cummins Owner's Manual

Also consult the Cummins® Owner's Manual for general emission and warranty related information.

7.4 Training

Access training via Cummins Inc. learning center (learn.cummins.com) (distributor **only**)

- Tampered Emissions Control Device training module (complete in less than 10 minutes) (ID: 000042296) The purpose of this training is to help employees address service events when tampered emissions control devices are found on a Cummins product.
- Defeat Device Awareness and Prevention (ID: 0000041612) The purpose of this mandatory training is to help employees learn about what AECD, AES and Defeat Device is and how to ensure we do everything we can to **not** design, create or use defeat devices in Cummins products during our product development processes.

APPENDIX A

Compliant Service Actions Flow Chart

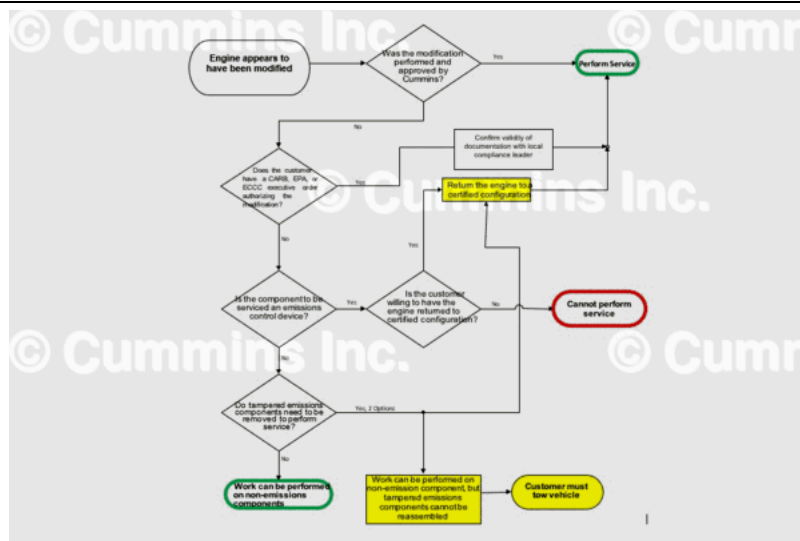


Figure 1, Compliant Service Actions Flow Chart.

Document History

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